

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JUNE 23, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Counsel and parties are encouraged to appear remotely through Zoom videoconferencing, **unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following information for your reference:

Zoom videoconferencing for Department 30:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP14-00200 RE: ALFRED A AFFINITO TRUST**
9:00 AM HEARING IN RE: PETITION FOR INSTRUCTIONS FILED BY MICHAEL AFFINITO ON 10/15/25 - STATUS OF
MEDIATION WITH GARY SANDERS

Need:

1. Appearances to report status, including settlement
2. Proposed Order

Note: Notice of Conditional Settlement of Entire Case was filed 02/23/26 by Mary Affinito and Michelle Affinito.

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2A. MSP16-00979 ESTATE OF: HAROLD SMITH

9:00 AM

HEARING IN RE: MOTION TO COMPEL FURTHER RESPONSES FILED BY HAROLD SMITH ON 06/16/2025
- RETURN FROM RE-ORDER TO BRESLIN MEDIATION

-- See also Line # 6 --

Need:

1. Appearances to report status, including mediation re-ordered 2-19-2026
2. Proposed Order

Note: Opposition filed by Callie Green 08/12/25.

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2B.

MSP16-00979 ESTATE OF: HAROLD SMITH

9:00 AM

HEARING IN RE: FIRST ACCOUNT AND REPORT FILED ON 09/13/24 BY CALLIE GREEN - RETURN FROM RE-ORDER TO BRESLIN MEDIATION

Need:

1. Appearances to report status, including mediation re-ordered 2-19-2026
2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice, including Franchise Tax Board who requested special notice
3. Satisfaction of Franchise Tax Board claim; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353
4. Proposed Order

Notes:

- a. Objections of Harold Smith filed 12-9-2024.
- b. Response to Objections filed 03/14/2025.

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2C.

9:00 AM

MSP16-00979 ESTATE OF: HAROLD SMITH

HEARING IN RE: MOTION TO VACATE OR SET ASIDE ORDER FOR PROBATE DATED 10/04/16 AND
MINUTE ORDER DATED 10/04/16 FILED ON 06/12/23 BY HAROLD SMITH - RETURN FROM RE-ORDER
TO BRESLIN MEDIATION

Need:

1. Appearances to report status, including mediation re-ordered 2-19-2026
2. Proof of mailing to Franchise Tax Board who requested special notice
3. Issuance of Citation. PrC § 8500(b)
4. Proposed Order

Notes:

- a. Letters of Administration issued to Callie Green 10-4-2016.
- b. Opposition filed by Callie Green 8-25-2023.
- c. Per 10-12-2023 minute order, court ordered atty. Yonano to file and serve an Inventory and Appraisal and Status Report by 1-12-2024. I&A filed 1-11-2024.
- d. Per 7-25-2024 minute order, court order atty. Yonano to file the first and final account by 10-4-2024.

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- 5.** **MSP22-00222** **ESTATE OF: OLETHA B. JOHNSON**
9:00 AM HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FOR JOHN JOHNSON FILED ON 2-11-26
- Need:
1. Appearances
 2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
 3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice, including Franchise Tax Board who requested special notice. PrC § 1202
 4. Revised, proposed Order (a) ordering status report to be filed by 9-23-2026; (b) setting review hearing; (c) ordering that John Johnson to appear at the hearing; (d) ordering that a copy of the order be mailed to all heirs of the estate; and (e) including name, current address and phone number of party who will be acting *in propria persona*.

Note: Letters of Administration issued to John Johnson 7-18-2022.

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6. **P23-01070** **MATTER OF: THE HAROLD SMITH REVOCABLE LIVING TRUST**
9:00 AM HEARING IN RE: PETITION FOR ORDER DETERMINING VALIDITY OF TRUST, FOR ORDER ASCERTAINING
BENEFICIARIES OF TRUST, FOR CONSTRUCTIVE TRUST, FOR ATTORNEYS' FEES AND COSTS AND
DOUBLE DAMAGES, FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR, FOR DAMAGES
UNDER PROBATE CODE 16061.9 FILED ON 06/12/23 BY HAROLD SMITH - RETURN FROM RE-ORDER
TO BRESLIN MEDIATION

-- See also Line # 2 --

Need appearances to report status, including mediation re-ordered 07/10/25, 11-4-
2025 and 2-19-2026

Note: Response and Objection filed by Callie Green 7-13-2023.

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7. 9:00 AM	P24-00901 MATTER OF: THE ALEXIS CHEUNG SPECIAL NEEDS TRUST HEARING IN RE: SIXTH AND FINAL ACCOUNT & REPORT OF TRUSTEE OF ALEXIS CHEUNG SPECIAL NEEDS TRUST; PETITION TO SETTLE ACCOUNT; TO EXONERATE BOND; AND TO FIX AND ALLOW TRUSTEE FEES AND ATTORNEY FEES FILED BY HERB THOMAS ON 2-11-26 Need: Receipt from Heather Fisher for assets transferred to successor trustee, prior to exoneration of bond
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8.	P24-01962	MATTER OF: THE ELENA F. MALLIARIS LIVING TRUST, AS AMENDED AND RESTATED ON SEPTEMBER 27, 2022
9:00 AM	HEARING ON PETITION IN RE: FOR ORDER COMPELLING TRUSTEE TO ACCT; REDRESS BREACHES; SUSPENSION AND REMOVAL OF TRUSTEE; DISALLOWANCE OF COMPENSATION; FEES AND COSTS FILED ON 10/30/24 BY DEREK ESCALANTE - RETURN FROM RE-ORDER TO BRESLIN MEDIATION	
	Need appearances to report status, including mediation ordered 8-19-2025 and re- ordered 2-19-2026	
	Notes: 1. Per 3-20-2025 minute order, court ordered objections to be filed by 6-18-2025. 2. Objection and Response filed by Giovana Merritt 6-20-2025. 3. Petition to Approve First Final Report and Account of Trustee filed by Giovana Merritt 5-14-2026, is set for hearing 8-13-2026.	

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9. **P25-00234 ESTATE OF: WILLIAM SCHNITZER**
9:00 AM HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR LEE CURTIS, PETITION FOR ALLOWANCE OF STATUTORY FEES TO PERSONAL REPRESENTATIVE AND FOR FINAL DISTRIBUTION FILED BY LEE CURTIS ON ~~2-12-26~~ 02/13/2026
- Need:
1. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. LR 7.300; PrC § 1202
 2. Verified declaration by petitioner to clarify date Creditor's Claim was filed. Claim was filed 9-3-2025, not 8-25-2025 as indicated at page 2, ¶ 6.
 3. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
 4. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
 5. Accounting that complies with PrC § 1060 *et seq.*
 6. Verified declaration of petitioner showing compliance with Probate Code § 11005
 7. Verified declaration by attorney to show nature and difficulty of tasks performed, results achieved, benefit of services to the estate, and to specify the amount requested for each category of service provided CRC § 7.702 (also time and hourly rate)
 8. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
 9. Proposed Order

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10.

9:00 AM

P25-00277

ESTATE OF: PHILLIP RODWELL

HEARING IN RE: PETITION FOR FINAL DISTRIBUTION UPON WAIVER OF ACCOUNTING; REPORT OF ADMINISTRATOR; FOR ALLOWANCE OF COMPENSATION OF ESTATE & WAIVER OF COMPENSATION FOR ADMINISTRATOR FILED BY DAWN KUNZ ON 2-12-26

Need:

1. Verified declaration by petitioner to clarify date creditor's claim period ended. Claim period ended 8-18-2025, not 8-14-2025 as indicated at page 2, ¶ 6.
2. Verified declaration by petitioner to clarify whether any Creditor's Claims were received and/or filed between 8-14-2025 and 8-18-2025.
3. Verified declaration by petitioner to specify whether all charges for probate referee's services have been paid. LR 7.317

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11. **P25-00751** **IN THE MATTER OF: FRIESEN FAMILY TRUST (SURVIVOR'S TRUST) DATED 1-25-17**
9:00 AM HEARING IN RE: EXISTENCE OF TRUST OWNERSHIP IN REAL PROPERTY & PERSONAL PROPERTY &
PETITION FOR INSTRUCTIONS AUTHORIZING SUCCESSOR TRUSTEE TO TRANSFER REAL & PERSONAL
PROPERTY TO THE TRUST FILED ON 7-17-25 BY CSC FIDUCIARIES - RETURN FROM BRESLIN MEDIATION

Need:

1. Appearances to report status, including mediation ordered 2-17-2026
2. Proposed Order

Notes:

1. Petition for Order Approving Settlement Agreement filed by CSC Fiduciaries, Inc. 5-20-2026, is set for hearing 9-22-2026.
2. Amended Petition for Order Determining Existence of Trust Ownership filed by CSC Fiduciaries, Inc. 5-21-2026, is set for hearing 9-22-2026.

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12.

9:00 AM

P25-01451

ESTATE OF: MAXINE LITTLE

HEARING IN RE: PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED BY STEVEN REYNOLD GOODRICH ON 08/18/2025

Petitioner, son, still must do the following:

1. Appear at the hearing, pursuant to 2-17-2026 minute order
2. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
3. File a verified declaration by petitioner to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
4. File a verified declaration by petitioner to address petition Item #5.b. (whether decedent was survived by a stepchild or foster child or children who would have been adopted, but for a legal barrier)
5. File a verified declaration to include estimated value of the estate so court can determine whether there is an estate to manage. Item # 3.d. is incomplete.
6. Submit Order for Probate Form DE-140

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13.

9:00 AM

P25-01778

ESTATE OF: LINDA GONZALEZ

HEARING IN RE: PETITION FOR (1) ORDER TO RETURN ASSETS TO THE ESTATE; (2) ELDER FINANCIAL ABUSE; (3) ACCOUNTING; AND (4) DISINHERITANCE OF RESPONDENTS FILED ON 02/13/2026 BY CELESTINA PEREZ

Need:

1. Appearances
2. Proposed Order

Notes:

1. Letters of Administration issued to daughter Celestina Perez 11-19-2025.
2. Response filed by Anacleto Gonzalez and Julia Gonzalez 5-15-2026.

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14.

P25-02313

ESTATE OF: CORDIS JONES

9:00 AM

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED BY LIYANNA CANNEDY ON 12/30/25

Petitioner still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120
3. File a verified declaration by petitioner to complete petition item # 5.a.(5)(a) or 5.a.(5)(b) (whether decedent was survived by a natural or adopted child or natural adopted by a third party)
4. File a verified declaration to include Cordis Jones, Jr., Ethel Parker, Cathy Jones, trustee of trust and trust beneficiaries in Item # 8. PrC § 8002
5. File a verified declaration by petitioner to add deceased spouse with date of death to petition Item # 8. LR 7.151(d)
6. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice, including notice that will is lost, and file a Proof of Service with court. PrC §§ 1202, 8100; LR 7.151(e)
7. Lodge Original Will (w/legal process). PrC § 8200
8. File evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
9. File a verified declaration to clarify fair market value of estate so court can determine bond amount. Item # 3.d. is incomplete.
10. File Waiver of Bond by Heir or Beneficiary on mandatory Judicial Council Form DE-142. PrC § 8481
11. Lodge a revised, proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

Notes:

1. If granted, petitioner will be appointed as Administrator With Will Annexed. Petitioner is not named in will as executor.
2. Per 2-18-2026 minute order, Kiyanna Cannedy appeared in objection and court ordered written objections to be filed and served by 3-30-2026. Failure to file objections will deemed a waiver.
3. Declaration of Kiyanna Cannedy, in objection, filed 3-11-2026.

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15. 9:00 AM	P26-00250 HEARING IN RE: PETITION FOR AN ORDER CONFIRMING PROPERTY IN LIVING TRUST FILED ON 02/11/26 BY MARK EDWARD EINBECKER Need appearances	MATTER OF: THE JEAN MARIE CRIDDLE LIVING TRUST
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16.
9:00 AM

P26-00262 **MATTER OF: THE WALTER R. MCDONALD TRUST DATED OCTOBER 15, 2016**
HEARING IN RE: PETITION FOR APPROVAL OF ACCOUNTING FILED ON 02/13/26 BY CHRISTOPHER
MASON

Need:

1. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
2. Statement regarding bond per LR 7.111(b).
3. Verified declarations by petitioner and attorney in support of trustee and attorney's fees paid as reported at schedule of disbursements. Statement showing services rendered, hours and rates charged so ct. can evaluate attorney fees reported. LR 7.450
4. Proposed Order

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17. P26-00803 MATTER OF: THE LEONARD N. BOWE FAMILY TRUST DATED APRIL 7, 2025, (THE "TRUST").

9:00 AM HEARING IN RE: PETITION FOR VALIDATION OF TRUST; INSTRUCTIONS; DETERMINE CLAIM TO PROPERTY FILED ON 4/30/26 BY TIMOTHY M. HYDEN

Need:

1. Appearances
2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203